

U.S. Customs And Border Protection: Know Before You Go—Security Measures



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Editor's note: The information below was posted on the U.S. Customs and Border Protection web site

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ADVANCE PASSENGER INFORMATION SYSTEM (APIS)

Overview

A new predeparture Advance Passenger Information System (APIS) requirement allows the Department of Home-land Security (DHS) to review passenger information prior to boarding for commercial flights arriving into or departing from the United States (/places/united-states-and-canada/us-political-geography/united-states) and for commercial vessels destined for or departing the United States (/places/united-states-and-canada/us-political-geography/united-states).

Purpose

The advance transmission of this information, coupled with Passenger Name Record (PNR) data, will provide DHS the ability to identify potential threats and coordinate with carriers and foreign law enforcement to prevent the boarding of a person of interest.

APIS

The Advance Passenger Information System (APIS) is a widely used electronic data interchange system that allows carriers to transmit traveler data to CBP. APIS data includes passenger information that would be found on the face of a passport, such as full name,

gender, and country of passport issuance. The current APIS requirements were established in April, 2005, with the publication of the APIS Final Rule. The APIS program is recognized by commercial carriers and the international community as the standard for passenger processing and enhanced security in the commercial air and vessel environment. During Fiscal Year 2006, CBP processed a record 87 million passengers arriving from abroad by air.

Transmission

Air carriers may transmit predeparture APIS information either:

- Using the APIS Batch Transmission, in interactive or non-interactive form, that requires air carriers to transmit the complete manifest for all passengers 30 minutes prior to departure.
- Using the APIS Quick Query mode that allows air carriers to transmit in real time as each passenger checks in for the flight prior to boarding.

Under both options, the carrier will not permit the boarding of a passenger unless the passenger has been cleared by CBP. For vessels departing from foreign ports bound for the U.S., current requirements to transmit passenger and crew arrival manifest data between 24 to 96 hours prior to arrival will remain unchanged, but requires vessel carriers to transmit APIS data 60 minutes prior to departure from the United States.

History

Prior to 9/11, the U.S. Customs Service, now part of U.S. Customs and Border Protection (CBP) received advance passenger information from air carriers on a voluntary basis. APIS requirements were first implemented under the Aviation and Transportation Security Act (ATSA) of 2001 and the Enhanced Border Security and Visa Reform Act of 2002. As a result of 9/11 Commission recommendations, Congress mandated that DHS establish a requirement to receive advance information on international passengers traveling by air and sea, prior to their departure in the Intelligence Reform and Terrorism Prevention Act of 2004 (IRTPA).

What's New

CBP already requires the transmission of APIS data for commercial carriers arriving in or departing from the United States. The announcement of a predeparture requirement simply changes the time within which the APIS data must be transmitted. There is also a new benchmark definition, for the air environment. In addition, the definition of departure is being clarified. It no longer means “push-back” from the gate and now is “securing of the aircraft doors.”

Privacy

Extensive discussions have been conducted between CBP and air and vessel carriers to identify best practices, ensure both carrier and CBP systems are communicating properly, and to ensure the highest level of privacy protection.

CBP AUTHORITY

A U.S. Customs and Border Protection (CBP) officer's border search authority is derived through 19 U.S.C. 1467 and 19 C.F.R. 162.6, which states that, “All persons, baggage and merchandise arriving in the Customs territory of the United States from places outside thereof are liable to inspection by a CBP officer.” Unless exempt by diplomatic status, all travelers entering the United States, including U.S. citizens, are required to participate in CBP processing. It is not the intent of CBP to subject travelers to unwarranted scrutiny. The CBP inspection procedures are designed to facilitate the entry of U.S. citizens and aliens who can readily establish their admissibility. CBP officers must determine the nationality of each applicant for admission and, if determined to be an alien, whether or not the applicant meets the requirements of the Immigration and Nationality Act for admission to the United States. CBP officers may, unfortunately, inconvenience law-abiding citizens in order to detect those involved in illicit activities. They are especially aware of how inconvenient and stressful the inspection process may be to those selected for inspection. In such cases they rely heavily on the patience, understanding, and cooperation of the traveler.

Speaking with travelers and closely examining their documentation are some of the ways CBP officers look for mala fide or improperly documented travelers. CBP relies upon the judgment of individual CBP officers to use their discretion as to the extent of examination necessary. However, CBP officers are expected to conduct their duties in a professional manner and to treat each traveler with dignity and respect.

CBP Officers use diverse factors to refer individuals for targeted examinations and there are instances when our best judgements prove to be unfounded. Although CBP does use information from various systems and specific techniques for selecting passengers for targeted examinations, a component of our risk management practices is the use of a completely random referral for a percentage of travelers.

Many travelers wonder if CBP is alerted when an inbound passenger has a warrant for their arrest issued. Yes, CBP is alerted. In the air passenger environment, air carriers transmit passenger information to CBP through the Advance Passenger Information System (APIS). CBP officers also rely on the Interagency Border Inspection System (IBIS) to determine which individuals to target for secondary examination upon arrival in the United States.

CBP, along with law enforcement and regulatory personnel from 20 other Federal agencies or bureaus, use IBIS. Some of these agencies are the [Federal Bureau of Investigation \(/social-sciences-and-law/political-science-and-government/us-government/federal-bureau-investigation\)](https://www.fbi.gov) (FBI), Interpol, the Drug Enforcement Administration, the Bureau of Alcohol, Tobacco and Firearms and Explosives, the Internal Revenue Service, the Coast Guard, the [Federal Aviation Administration \(/social-sciences-and-law/political-science-and-government/us-](https://www.faa.gov)

government/federal-aviation), Secret Service, and the Animal Plant Health Inspection Service. Information from IBIS is also shared with the Department of State for use by Consular Officers at U.S. Embassies and Consulates.

IBIS assists the majority of the traveling public with expeditious clearance at ports of entry while allowing the border enforcement agencies to focus their limited resources on potential non-compliant travelers. IBIS provides the law enforcement community with access to computer-based enforcement files of common interest. It also provides access to the FBI's National Crime Information Center (NCIC) and allows its users to interface with all 50 states via the National Law Enforcement Telecommunications Systems.

IBIS resides on the Treasury Enforcement Communications System at the CBP Data Center. Field level access is provided by an IBIS network with more than 24,000 computer terminals. These terminals are located at air, land, and sea ports of entry.

IBIS keeps track of information on suspected individuals, businesses, vehicles, aircraft, and vessels. IBIS terminals can also be used to access NCIC records on wanted persons, stolen vehicles, vessels or firearms, license information, criminal histories, and previous Federal inspections. The information is used to assist law enforcement and regulatory personnel.

CBP has the authority to collect passenger name record information on all travelers entering or leaving the United States. This information is strictly used for preventing and combating terrorism and serious criminal offenses with the principal purpose of facilitating the CBP mission to protect our Nation's borders through threat analysis to identify and interdict persons who have already committed or may potentially commit a terrorist act in the future. Should CBP determine that an error exists within our system of records, corrective measures will be taken.

THE CBP TRAVELER INSPECTION

Introduction

When a U.S. Customs and Border Protection (CBP) officer stops a traveler for a closer inspection, it does not necessarily mean that the traveler is suspected of any wrongdoing. In addition to enforcing homeland security related laws, CBP enforces hundreds of laws for other federal agencies. Only a very small percentage of passengers smuggle drugs and other prohibited items into the United States of America. CBP is faced with the challenge of finding these few people among the millions of honest travelers entering the country. Through its enforcement examinations, CBP has seized tons of illegal items at airports, seaports, and land borders. This contraband would otherwise have ended up in local communities or affected America's agriculture.

U.S. Customs and Border Protection Mission Statement

We are the guardians of our Nation's borders. We are America's front line. We safeguard the American homeland at and beyond our borders. We protect the American public against terrorists and the instruments of terror. We steadfastly enforce the laws of the United States while fostering our Nation's economic security through lawful international trade and travel. We serve the American public with vigilance, integrity and professionalism.

Title 19, Section 1582 of the U.S. Code authorizes U.S. Customs and Border Protection officers and agriculture specialists to search, inspect and/or examine all persons, luggage and merchandise coming from a carrier arriving in the United States from a foreign destination.

Inbound Examinations

There are two types of inspections that you may be selected for; one when you enter the country and the other is when you leave. The purpose of the inspection upon entry to the United States is to verify the information on the CBP declaration, which has been completed by you, the arriving international traveler, and to address any possible issues arising from it.

CBP is also responsible for apprehending individuals attempting to enter the United States illegally, stemming the flow of illegal drugs and other contraband; protecting our agricultural and economic interests from harmful pests and diseases; protecting American businesses from theft of their intellectual property; and regulating and facilitating international trade, collecting import duties, and enforcing U.S. trade laws.

CBP officers are also looking for a possible terrorist, terrorist weapons, or narcotics when they choose passengers for examination. This may result in having to undergo a personal search. However, there are many other reasons for a traveler to be referred for a secondary examination.

For example, CBP officers may determine if:

- You owe customs duty or other taxes;
- You have merchandise that you did not declare on your declaration;
- You have commercial merchandise;
- You have merchandise that may be considered prohibited or restricted.

Outbound Examinations

The purpose of an inspection before leaving the United States is to inform passengers of their legal responsibility to file a Financial Crimes Enforcement Network (FinCEN) Form 105 when traveling with currency, or other monetary instruments in excess of \$10,000 out of the United States. CBP officers may choose passengers for an inspection for a variety of reasons and this may result in having to undergo a personal search. If selected for a personal search, your cooperation and understanding will be greatly appreciated.

Why aren't all passengers inspected?

Although CBP officers have the authority under federal statutes to inspect everyone and everything entering or leaving the United States, there are two reasons why they do not. Most passengers are law-abiding travelers. CBP officers use random inspections to concentrate on finding those few passengers who are not obeying the law.

Personal Search—What to expect during CBP examination

If you are selected for a personal search, there are a few things you need to know. You may not be searched on any discriminatory basis (e.g. race, gender, religion, ethnic background). A search based on consideration of citizenship or travel itinerary that includes a narcotics source or transit country is not discriminatory.

You should be treated in a courteous, professional, and dignified manner. You will receive an explanation of the examination process as it occurs. Unless probable cause has been developed, you can request that CBP notify some-one of your delay if you are detained more than two hours after the personal search has begun.

What can I do if I think the examination was not conducted in a professional manner?

If you feel that the examination was not conducted in a professional manner, ask to speak with a CBP supervisor immediately. A CBP supervisor is always available at the facility or by telephone. Supervisors are responsible for ensuring that CBP officers treat all persons with dignity and that they behave in a professional manner. The CBP processing facility you are in may also employ a CBP Passenger Service Representative (PSR). The PSR is a supervisor specifically trained to handle any concerns or questions you may have. If you have any additional comments or questions, U.S. Customs and Border Protection wants to hear from you. You may write or call directly to CBP Headquarters at:

Customer Service Center
Office of Public Affairs
U.S. Customs and Border Protection
1300 Pennsylvania Avenue, N.W.
Washington, DC 20229
1-877-CBP-5511

You will receive a written response in a timely manner.

If you provide your daytime phone number, CBP will contact you directly by telephone. You may also get information and provide feedback through the CBP Web site at www.cbp.gov (<http://www.cbp.gov>).

Random Exams

One of CBP missions is to ensure that travelers entering the United States comply with U.S. laws. In support of this mission, CBP conducts random compliance examinations (COMPEX). Essentially, COMPEX examinations involve random selection of vehicles and/or air passengers that ordinarily would not be selected for an intensive examination. By combining the results of these examinations with the results of targeted examinations, CBP is able to estimate the total number of violations being committed by the international traveling public.

When CBP compares the results of the two types of examinations, we are better able to devise enforcement techniques that prevent the entry of contraband without creating undue delay of law abiding travelers. Often trends tell us what message we need to send to ensure informed compliance by travelers who were unaware of our requirements.

It is possible that, upon your entry into the United States from a foreign country, you may be selected for a COMPEX examination and experience a slight delay in your Customs processing. CBP believes that this compliance examination is a critical component of our ability to ensure that our processing procedures are effective. We apologize for any delay or inconvenience you may experience and appreciate your cooperation.

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